

Chapter 19

TRAFFIC AND MOTOR VEHICLES*

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CLAREMONT CODE

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ARTICLE I. IN GENERAL**Sec. 19-1. Definitions.**

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business parking lot shall mean any parking lot adjacent to or in the vicinity of any store, restaurant, gasoline station, public or private office building, commercial building, industrial facility, or any other facility which provides free parking during normal business or operating hours for the use and convenience of employees, customers, patrons, guests, or invitees.

Crosswalk shall mean that portion of a roadway ordinarily included within the prolongation or connection of curb and property lines at intersections, or any other portion of a roadway clearly indicated for pedestrian crossing by lines or other markings on the surface.

Intersection shall mean the area embraced within the prolongation or connection of the lateral curblines, or if none, then of the lateral boundary lines of two (2) or more streets or highways which join one (1) another at an angle, whether or not one (1) such street or highway crosses the other.

Motor vehicle shall mean every vehicle as herein defined which is self-propelled.

Official traffic signals shall mean all signals, not inconsistent with this chapter, placed or erected by authority of a public body or official having jurisdiction, for the purpose of directing, warning or regulating traffic.

Official traffic signs shall mean all signs, markings and devices, other than signals, not inconsistent with this chapter, placed or erected by authority of a public body or official having jurisdiction, for the purpose of guiding, directing, warning or regulating traffic.

Owner shall mean any owner or other person lawfully in charge of a business parking lot, including any person authorized in writing by the owner to exercise rights granted to the owner by law.

Parking shall mean the standing of a vehicle, whether occupied or not, upon a roadway, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading, or in obedience to traffic regulations or traffic signs or signals.

Pedestrian shall mean any person afoot.

Police officer shall mean every officer of the police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations, sheriffs and their deputies.

Private business premises shall mean any lands or buildings, or any part thereof, owned or occupied by any store, restaurant, office, factory, church or any other business, whether for profit or not for profit.

Private road or driveway shall mean every road or driveway not open to the use of the public for purposes of vehicular travel.

Right-of-way shall mean the privilege of the immediate use of the street or highway.

Roadway shall mean that portion of a street or highway between the regularly established curblines or that part improved and intended to be used for vehicular travel.

Sidewalk shall mean that portion of a street between the curblines and the adjacent property lines.

Street or *highway* shall mean every way or place of whatever nature open to the use of the public, as a matter of right, for the purpose of vehicular travel.

Traffic shall mean pedestrians, ridden or herded animals, vehicles and other conveyances either singly or together while using any street for purposes of travel.

Traffic-control signal shall mean any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and proceed.

Vehicle shall mean every device in, upon or by which any person or property is or may be transported or drawn upon a public highway, except devices moved by human power or used exclusively upon stationary rails or tracks.

(Ord. No. 247, art. I, § 1, 5-8-85; Ord. No. 374, 5-24-95)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Definitions, RSA 259:1 et seq.

Sec. 19-2. Waiver of permit for registration fee.

(a) This section waives the fee to be charged pursuant to RSA 261:148 et seq., for a permit to register one (1) motor vehicle owned by any person who was captured and incarcerated for thirty (30) days or more while serving in a qualifying war or armed conflict as defined in RSA 72:28(IV), and who was honorably discharged. This waiver shall apply to all persons who can provide to the city clerk satisfactory proof that he was incarcerated as a prisoner of war as defined in RSA 72:28(IV). All persons seeking exemption from the registration permit fees shall utilize a standard form available from the city clerk and indicate the following:

- (1) Name and address of applicant;

- (2) Written description of the qualifying war in which he served;
- (3) Attach copies of verification of incarceration as a prisoner of war in a qualifying war.

(b) The city clerk shall have the responsibility for enforcing this section. For this purpose the city clerk may act personally or through any city employee he may designate.

(Ord. No. 255, §§ 1—5, 11-13-85)

Cross reference—Taxation, Ch. 18.

State law references—Permits for registration, RSA 261:148; waiver authorized, RSA 261:157-a.

Sec. 19-3. Application to persons propelling pushcarts, riding bicycles.

Every person propelling any pushcart or riding a bicycle or an animal upon a roadway, and every person driving any animal, shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which by their very nature can have no application.

(Ord. No. 247, art. II, § 4, 5-8-85)

State law reference—Similar provisions, RSA 265:5.

Sec. 19-4. Covering refuse being hauled.

It shall be unlawful for any person to transport in any open vehicle on any highway any loose ashes, paper, rubbish, refuse, sawdust or other matter, and every vehicle so used shall be equipped with and have in use a cover or device which will prevent such materials from being blown, dropped or otherwise scattered upon the highway. No vehicle shall be operated or parked upon a highway unless it is so constructed or loaded as to prevent its contents from dropping, sifting, leaking or otherwise escaping therefrom.

(Ord. No. 247, art. VI, § 19, 5-8-85)

Cross reference—Solid waste, Ch. 14.

Secs. 19-5—19-25. Reserved.

ARTICLE II. ADMINISTRATION**Sec. 19-26. Police to direct traffic.**

It shall be the duty of the police department to enforce the provisions of this chapter. Officers of the police department are hereby authorized to direct all traffic either in person or by means of visible or audible signals in conformance with the provisions of this chapter, provided that in the event of a fire or other emergency or to expedite traffic or safeguard pedestrians, officers of the police or fire department may direct traffic, as conditions may require, notwithstanding the provisions of this chapter. (Ord. No. 247, art. II, § 1, 5-8-85)

Sec. 19-27. Obedience to police.

It shall be unlawful for any person to refuse or fail to comply with any lawful order, signal or direction of a police officer. (Ord. No. 247, art. II, § 3, 5-8-85)

State law reference—Similar provisions, RSA 265:3.

Secs. 19-28—19-45. Reserved.**ARTICLE III. TRAFFIC-CONTROL DEVICES*****Sec. 19-46. Placement and specifications for signs, signals.**

(a) The traffic committee of the city council and the police chief with the approval of the city council shall determine and designate the location of all official traffic signs and signals.

(b) All signs and signals required under this chapter for a particular purpose shall conform to the official traffic-control devices of the state.

(Ord. No. 247, art. III, § 1(a), 5-8-85; Ord. No. 305, § 1(art. III, § 1(a)), 5-23-89)

***Cross reference**—Traffic-control signs and markings in public parks and recreation areas, § 12-82.

Sec. 19-47. Necessity of signs, signals.

No provision of this chapter for which signs are required shall be enforced against an alleged violator, if, at the time and place of the alleged violation, the sign required is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective without signs being erected to give notice thereof.

(Ord. No. 247, art. III, § 1(b), 5-8-85)

Sec. 19-48. Obedience to signs, signals.

It shall be unlawful for the driver of any vehicle to disobey the instructions of any official traffic sign or signal placed in accordance with the provisions of this chapter, unless otherwise directed by a police officer.

(Ord. No. 247, art. III, § 2, 5-8-85)

State law reference—Similar provisions, RSA 265:9.

Sec. 19-49. Designating crosswalks.

The traffic committee of the city council is hereby authorized to recommend to the city council, crosswalks at intersections where in its opinion there is particular danger to pedestrians crossing the roadway, and at such other places as it may deem necessary.

(Ord. No. 247, art. III, § 6, 5-8-85)

Sec. 19-50. Traffic signs and marks.

The city council shall cause to be erected and maintained all official traffic signs and signals required under this chapter, and shall cause lines or marks to be painted on the streets and curbs designating crosswalks, parking spaces and areas in which parking is prohibited.

(Ord. No. 247, art. III, § 7, 5-8-85)

Sec. 19-51. Unauthorized signs prohibited.

Every unauthorized or unofficial sign purporting to be an official traffic sign or signal prohibited by RSA 265:14 is hereby

prohibited and declared to be a public nuisance, the chief of police is hereby empowered to remove the same, or cause it to be removed, without notice.

(Ord. No. 247, art. III, § 4, 5-8-85)

Secs. 19-52—19-65. Reserved.

ARTICLE IV. OPERATION OF VEHICLES*

Sec. 19-66. Crossing corners to avoid intersections.

(a) The practice of driving vehicles from one (1) highway to another intersecting highway by passing over, upon or through property bounded by such intersecting highways as a short cut, is hereby prohibited and declared to be a hazard to public travel.

(b) It shall be unlawful for the driver of any vehicle to evade or avoid making a proper turn at intersecting highways by leaving one (1) such highway to reach another such highway by passing over, upon or through property bounded by such intersecting highways, whether or not such property is public or private. If any vehicle shall be so driven and the driver shall fail to stop the vehicle on such property, such failure to stop shall be prima facie evidence that the driver intended to evade or avoid making a proper turn at such intersecting highways. If the driver shall stop the vehicle on such property and immediately thereafter start the vehicle and drive the vehicle onto the highway, such stop shall be deemed to be not in compliance with the requirements for stopping within the meaning of this section and shall be prima facie evidence that the driver intended to evade or avoid making a proper turn at such intersecting highways. Upon conviction for violation of this section such driver shall be fined not less than five (5) and not more than twenty dollars (\$20.00) for each offense. (Ord. No. 247, art. VI, § 9, 5-8-85)

***Cross references**—Reckless operation of vehicles in park or recreation areas prohibited, § 12-84; drag racing in parks and recreation areas prohibited, § 12-85; operation of vehicles under the influence of alcoholic beverages or drugs prohibited, § 12-86.

Sec. 19-67. Crossing through or interfering with a procession.

It shall be unlawful for the driver of any vehicle to drive through the line of or between the vehicles comprising a funeral or other authorized procession while such procession is in motion, provided that the vehicles are conspicuously designated as forming a part of such procession unless he is directed to do so by a police officer.

(Ord. No. 247, art. VI, § 13, 5-8-85)

Sec. 19-68. Funeral procession given right-of-way.

A funeral procession shall have the right-of-way in any street when the vehicles comprising the procession are identified or marked with appropriate flags, cards or similar identifying marks such as lighted headlights. It shall be lawful for all vehicles comprising such procession to follow the leading vehicle thereof through traffic-control lights, signals and stop signs, except that the driver of the leading vehicle shall comply with traffic-control lights, signals and stop signs, unless he is otherwise directed by a police officer.

(Ord. No. 247, art. VI, § 14, 5-8-85)

Sec. 19-69. Approaching a bus while loading or unloading.

The operator of every vehicle approaching a bus which is parked for the purpose of loading or unloading passengers shall slow down or stop such vehicle as may be reasonably necessary.

(Ord. No. 247, art. VI, § 15, 5-8-85)

Sec. 19-70. Sounding of horn.

It shall be unlawful to sound the horn of any vehicle upon the highway for any purpose other than to give warning to others using the highway or approaching the highway. Such use of a horn shall in all cases be limited to short blasts and only to the extent reasonably necessary to give such warning.

(Ord. No. 247, art. VI, § 18, 5-8-85)

Secs. 19-71—19-85. Reserved.

ARTICLE V. STOPPING, STANDING AND PARKING***Sec. 19-86. Stopping prohibited in specified places.**

It shall be unlawful for the driver of a vehicle to stop, stand or park such vehicle in any of the following places or manners except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic sign or signal:

- (1) At any location where official traffic signs have been erected prohibiting standing and parking or where curbs and/or adjacent pavements have been painted yellow or white or where edges of pavement have been marked with single painted yellow or white lines;
- (2) On any roadway so as to interfere with and interrupt the passage of other vehicles, or in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for free movement of vehicular traffic except that a driver may stop temporarily during the actual loading or unloading of passengers or when necessary in obedience to traffic regulations or traffic signs or signals or a police officer;
- (3) Within fifty (50) feet of or on a bridge unless specifically designated for parking;
- (4) Upon or adjacent to street railway tracks in such a manner as to interfere with the operation of street railway cars between the hours of 7:00 a.m. and 6:00 p.m.;
- (5) Within areas designated by the chief of police as "Emergency No Parking Zones" for such reasons as construction, funerals, official police business, parades and civic activities;
- (6) With the left side of the vehicle to the curb except on streets designated for one-way traffic flow;
- (7) Within twenty (20) feet of the driveway entrance to any fire station;
- (8) Within fifteen (15) feet of a fire hydrant;

*Cross references—Off-street parking, § 22-526 et seq.; parking restrictions within the boundaries of parks or parkways, § 12-83.

- (9) With the rightside wheels of a vehicle more than eighteen (18) inches from the curb or edge of the street or highway, except upon those streets marked and/or signed for angle parking;
 - (10) In such a manner whereby the vehicle is not within the parking space designated by pavement markings;
 - (11) On private property in a manner which obstructs the view of the operation of a vehicle, operating on a street or highway, so that the operator is unable to see vehicles approaching on cross streets; provided, it shall not be a violation of this paragraph if a vehicle, on private property, is parked so that all parts of the vehicle are at least ten (10) feet from any sidewalk or property line, whichever is farther from the adjacent street or highway;
 - (12) Upon city greens.
- (Ord. No. 247, art. V, § 1(e), (f), (k)—(s), 5-8-85; Ord. No. 305, § 1(art. V, § 1(e), (f), (t)), 5-23-89; Ord. No. 358, 6-8-94)

State law reference—Stopping, standing or parking prohibited in specified places, RSA 265:69.

Sec. 19-87. Angle and parallel parking.

The traffic committee of the city council with the approval of the city council shall determine upon what streets angle parking or parallel parking shall be permitted. Such streets shall be marked or signs erected to designate proper manner for parking.

(Ord. No. 247, art. V, § 2, 5-8-85; Ord. No. 305, § 1(art. V, § 2), 5-23-89)

Sec. 19-88. Bus stops, taxicab stands, loading zones and parking areas for law enforcement officials.

(a) The traffic committee of the city council is hereby authorized and required, subject to the approval of the city council, to establish bus stops, taxicab stands and loading zones on such public streets, in such places, and in such manner as it shall determine to be of the greatest benefit and convenience to the public. Every such bus stop, taxicab stand, loading zone or no parking area shall be designated by appropriate signs. The traffic committee of the city council is further authorized and required,

subject to the approval of the city council, to establish parking areas for the exclusive use of local, county and state law enforcement officers. It shall be unlawful for any unauthorized person to park a vehicle in areas so designated and marked.

(b) It shall be unlawful for the driver of any vehicle other than an authorized bus to stand or park in an officially designated bus stop, or for any vehicle other than an authorized taxicab to stand or park in an officially designated taxicab stand, or for any vehicle to stand or park in an officially designated loading zone unless actually engaged in the expeditious loading or unloading of materials, articles or merchandise or for the driver of any vehicle to stand or park in an officially designated "no parking" area for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.

(c) It shall be unlawful for the driver of any bus or taxicab except a public school bus to stand or park upon any street in any business district at any place other than a bus stop or taxicab stand respectively, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers.

(d) Designated loading zones. The following areas shall be established as loading zones:

Sullivan Street, north side, from its intersection with Franklin Street east for a distance of twenty-four (24) feet.

Central Street, north side, from the westerly driveway of 59 Central Street east for a distance of sixty (60) feet.

(Ord. No. 247, art. V, § 3, 5-8-85; Ord. No. 305, § 1(art. V, § 3(a)), 5-23-89; Ord. No. 377, 2-14-96)

Sec. 19-89. Handicapped parking.

The traffic committee of the city council authorized to designate parking areas reserved for vehicles carrying people with walking disabilities as handicapped parking zones. The traffic committee of the city council is hereby authorized, subject to the approval of the city council, to establish parking areas exclusively

for vehicles operated by or carrying people with walking disabilities as defined by RSA 260:18-a. Only vehicles displaying special license plates, decals, cards, or tags issued by the director of motor vehicles of the state under RSA 260:17 and RSA 260:18-a shall be parked in such areas reserved and designated for those handicapped with walking disabilities. All such designated parking areas shall be marked with signs.

(Ord. No. 247, art. V, § 4, 5-8-85; Ord. No. 305, § 1(art. V, § 4), 5-23-89)

**Sec. 19-90. Parking time limited in designated places—
Fifteen-minute parking.**

(a) The driver of a vehicle shall not park such vehicle for longer than fifteen (15) minutes at any time between the hours of 9:00 a.m. and 6:00 p.m. of any day, except Sundays and public holidays, on the following described streets or parts of streets:

Broad Street, easterly side, between the southerly and northerly property lines of the United States Post Office projected westerly to Broad Street.

Broad Street, on the easterly and westerly side of the island situated westerly of and directly opposite the United States Post Office.

Broad Street, on the westerly side of the island which is situated southerly from the south end of Broad Street Park and westerly of the United States Post Office, from its north end southerly to the crosswalk.

City hall. The parking area located on the west side of city hall directly in front of the main (Opera House Square) entrance to city hall.

(b) The driver of a vehicle shall not park such vehicle for longer than fifteen (15) minutes at any time between the hours of 6:00 a.m. and 6:00 p.m. on the following described streets or parts of streets:

Hanover Street, west side, from a point one hundred ninety (190) feet north of its point of intersection with the northerly line of Eastman Street, northerly for fifty (50) feet.

(Ord. No. 247, art. V, § 5(a), 5-8-85; Ord. No. 305, § 1(art. V, § 5(a)), 5-23-89; Ord. No. 332, § 1, 8-22-90; Ord. No. 470, § 1, 4-12-06)

Sec. 19-91. Same—Thirty-minute parking.

The driver of a vehicle shall not park such vehicle for longer than thirty (30) minutes at any time, between the hours of 9:00 a.m. and 6:00 p.m. of any day, except Sundays and public holidays, on the following described streets or parts of streets:

Elm Street, east side, from the southern boundary of Number One Elm Street, northerly to Spring Street.

Main Street, north side, from the former River Street intersection easterly to the entrance to Sugar River Mills, a distance of approximately one hundred eighty (180) feet.

Middle Street, west side, from a point opposite the southerly line of the driveway servicing the Sears store, southerly to Summer Street.

North Street, south side, from Fremont Street to a line with Chellis Street.

Water Street, parking area, fifteen (15) spaces, located across from the State Office Building, historically known as Monadnock Mill No. 1, on the south side of Water Street, being the first fifteen (15) parking spaces commencing at the intersection of Water Street and United Way, proceeding in a westerly direction.

Water Street, south side, from its intersection with United Way in a westerly direction five (5) parking places.

(Ord. No. 247, art. V, § 5(b), 5-8-85; Ord. No. 375, 10-11-95; Ord. No. 395, 11-11-98)

Sec. 19-92. Same—Two-hour parking.

The driver of a vehicle shall not park such vehicle for longer than two (2) hours at any time, between the hours of 6:00 a.m. and 6:00 p.m. of any day, except Sundays and public holidays, and between the hours of 9:00 a.m. and 9:00 p.m. on Fridays except when such days are public holidays, on the following described streets and areas:

Broad Street, west branch, west side, between Glidden Street and south entrance to municipal parking lot.

Broad Street Connector on south side of city hall, both sides.

Broad Street, east side, from Putnam Street south to driveway to No. 178 Broad Street.

Broad Street, east branch, east side, between the driveway of the Goodwin Community Center northerly to the northern wall of the city library.

Broad Street Municipal Parking Lot: Broad Street, west side, between Tremont and Water Streets; excepting and reserving four parking spaces for the exclusive use of property located at Tax Map 120, Lot 17 and as further described by instrument dated April 18, 1984 and recorded in the Sullivan County Registry of Deeds at Vol. 759, Page 145;

Broad Street Municipal Parking Lot: Broad Street, east side, between Tremont and Meadow Streets.

Crescent Street, north side, except where under privately owned or separate agreement and signed separately, all parking from the intersection of United Way and Crescent Street to the easterly intersection of Crescent Street and the new connector street to Water Street.

Franklin Street Municipal Parking Lot, five (5) parking spaces nearest to Franklin Street.

Glidden Street, north side, from Pleasant Street to Middle Street.

Main Street, south side, from Opera House Square to 38 Main Street.

Main Street, south side, from Factory Street to Lafayette Street.

Opera House Square, center area and all sides.

Pleasant Street, both sides, from Summer Street to Opera House Square.

School Street, north side, from Pleasant Street to Franklin Street.

Spruce Avenue, west side.

Sullivan Street, north side, from its intersection with Franklin Street westerly one hundred twenty-nine (129) feet.

Tremont Street, both sides, from Broad Street westerly to Opera House Square.

Trinity Street, north side, from a point twenty-five (25) feet westerly on the westerly line of Franklin Street to a point twenty-five (25) feet westerly from the easterly line of Walnut Street.

United Way, twelve (12) parallel parking spaces on northerly side.

Water Street, both sides, from Broad Street to Main Street, except where privately owned or under separate agreement and separately signed and as provided for under section 19-90 et seq.

Water Street, south side, from its intersection with United Way in a westerly direction starting after the fifth parking stall and going west ten (10) parking stalls.

Winner Municipal Parking Lot: Pleasant Street, east side, north of Summer Street, as shown on Tax Map 120-106. (Ord. No. 247, art. V, § 5(c), 5-8-85; Ord. No. 364, 10-12-94; Ord. No. 395, 11-11-98; Ord. No. 470, § 1, 4-12-06; Ord. No. 517, § 1, 9-8-2010; Ord. No. 548, § 1, 8-10-2016)

**Sec. 19-92.1. Parking time limited in designated places—
Two-hour parking during school hours.**

The driver of a vehicle shall not park such vehicle for longer than two (2) hours at any time, during school hours when school is in session, on the following described streets and areas:

Broad Street, on the median, both sides, from Putnam Street southerly, to the median's termination at Summer Street. (Ord. No. 375, 10-11-95)

Sec. 19-92.2. Motorcycle parking.

Parking shall be restricted to motorcycles only in the following areas:

Pleasant Street, on the west side, beginning four hundred sixty (460) feet from the intersection with Opera House Square and running southerly the distance of twenty-five (25) feet. Said parking to be five (5) feet wide.
(Ord. No. 429, 3-13-02; Ord. No. 470, § 1, 4-12-06; Ord. No. 470, § 1, 4-12-06)

Sec. 19-93. No parking—Special times.

(a) *Between 7:30 a.m. and 9:30 p.m. and between 2:00 p.m. and 4:00 p.m.* The driver of a vehicle shall not park such vehicle at any time between the hours of 7:30 a.m. and 9:30 a.m. and between 2:00 p.m. and 4:00 p.m. at the following locations:

Myrtle Street, both sides, from its intersection with Pleasant Street to its intersection with Walnut Street.

(b) *Between 10:00 p.m. and 5:00 a.m.* The driver of a vehicle shall not park such vehicle at any time between the hours of 10:00 p.m. and 5:00 a.m. at the following locations:

Glidden Street, both sides, from its intersection with Pleasant Street to its intersection with Middle Street.

Pleasant Street, both sides, from its intersection with Opera House Square to its intersection with Summer Street.

School Street, both sides, from its intersection with Pleasant Street to its intersection with Franklin Street.

(c) *Between 7:00 a.m. and 3:00 p.m., Monday through Friday, September 1 through June 15.* The driver of a vehicle shall not park such vehicle at any time between the hours of 7:00 a.m. and 3:00 p.m., Monday through Friday, during the period of September 1 through June 15 at the following locations:

Front Street, south side, from West Terrace Street to Royce Street.

Summer Street, northerly side, from its intersection with Broad Street westerly to a point thirty (30) feet east of the Stevens High School cafeteria doors.
(Ord. No. 247, art. V, § 6, 5-8-85; Ord. No. 287, § 1, 3-9-88; Ord. No. 305, § 1 (art. V, § 6), 5-23-89; Ord. No. 325, § 1, 6-13-90; Ord. No. 342, 9-11-91; Ord. No. 390, 12-10-97; Ord. No. 392, 6-10-98; Ord. No. 470, § 1, 4-12-06; Ord. No. 545, § 1, 10-14-2015)

Sec. 19-94. No parking at any time.

The driver of a vehicle shall not park such vehicle at any time on the following described streets or parts of streets:

Bailey Avenue, south side, from its intersection with Broad Street to its intersection with Spofford Street.

Bailey Avenue, both sides, seventy-five (75) feet from its intersection with Broad Street and seventy-five (75) feet from its intersection with Spofford Street.

Bank Street, both sides, from Union Street to Sullivan Street.

Barber Street, south side.

Barber Street, north side, from a point two hundred sixty (260) feet easterly of its intersection with Broad Street easterly to High Street.

Beacon Street, easterly side.

Belmont Avenue, east side.

Block Avenue, east side, from its intersection with Maple Avenue to the end for a distance of two hundred forty-five (245) feet.

Bond Street, westerly side, from its point of intersection with the southerly line of Summer Street, southerly to a point one hundred twelve (112) feet south of such intersection.

Bowen Street, both sides.

Broad Street, easterly side, from a point in line with the northerly wall of the city library building northerly to Washington Street.

Broad Street, on the easterly side of the island which is situated southerly from the south end of Broad Street Park and westerly of the United States Post Office, and on the westerly side southerly from the south side of the crosswalk.

Broad Street, westerly side, from Broad Street Connector on south side of city hall northerly to North Street.

Broad Street, westerly side, from Glidden Street to Summer Street.

Broad Street, westerly side, from Opera House Square southerly to the entrance to the municipal parking lot.

Charles Street, both sides, from its intersection with Pleasant Street to its intersection with Highland Avenue.

Charles Street, north side, from its intersection with Highland Avenue westerly for one hundred (100) feet, with the first parking space westerly of the no parking area to be designated as handicapped parking.

Charles Street, south side.

Cossitt Avenue, north side, from its intersection with Broad Street easterly for a distance of three hundred thirteen (313) feet.

Cossitt Avenue, west side, from its intersection with Chestnut Street southerly for a distance of two hundred twenty-three (223) feet.

Crescent Street, southerly side.

Elm Street, west side, from its point of intersection with Main Street, northerly to Spring Street.

Elm Street, east side, from its point of intersection with Main Street, northerly to the intersection of Spring Street.

Elm Street, both sides, from its intersection with Main Street northerly for a distance of six hundred forty (640) feet to its intersection with Maple Street.

Elm Street, both sides, from North Street easterly for one hundred fifty (150) feet.

Elm Street, both sides, from North Street westerly for one hundred twenty (120) feet.

Elm Street, west side, from West Terrace Street to Federal Street.

Factory Street, west side, from its intersection with Main Street to the end for a distance of three hundred seventy-one (371) feet.

Fern Street, east side.

Franklin Street, both sides, from School Street to Sullivan Street and Sullivan Street to Main Street.

Freedom Street, south side, with its intersection with Fremont Street east for one hundred eighty-seven (187) feet.

Fremont Street, west side, from its intersection with North Street northerly for two hundred thirty-seven (237) feet.

Fremont Street, east side, from its intersection with North Street northerly for one hundred seventy-nine (179) feet.

Fremont Street, east side, from its intersection with North Street southerly for two hundred thirty-four (234) feet.

Fremont Street, west side, from its intersection with North Street southerly for one hundred seventeen (117) feet.

Glidden Street, north side, and south side, from Broad Street to Middle Street.

Glidden Street, south side, from Pleasant Street to Middle Street.

Green Street, north side.

Hanover Street, easterly side, from its intersection with North Street to its intersection with Dunning Street.

Hanover Street, both sides, from its intersection with North Street to its intersection with Dunning Street.

High Street, east side, from Tremont Street southerly for eighty (80) feet and northerly from Richards Street for sixty (60) feet.

High Street, west side, from Tremont Street to Barber Street.

High Street, wall to Tremont Street, both sides.

High Street, easterly side, from Putnam Street to Barber Street.

Kenyon Street, both easterly and westerly sides, from its intersection with Maple Avenue to the northerly entrance to the Maple Avenue School parking lot.

Lafayette Street, west side, thirty (30) feet southerly direction from Main Street.

Lincoln Heights, both sides.

Main Street, northerly side, from its point of intersection with Heritage Court, west for forty (40) feet.

Main Street, northerly side, from its point of intersection with Opera House Square, westerly to its point of intersection with Crescent Street.

Main Street, northerly side, from its point of intersection with the westerly line of Pearl Street, westerly for a distance of four hundred fifty (450) feet.

Main Street, northerly side, from its point of intersection with the westerly line of Elm Street, westerly to its point of intersection with Spring Street.

Main Street, northerly side, one hundred thirty (130) feet from its intersection with Heritage Court to a westerly direction to the intersection with Elm Street.

Main Street, southerly side, from a starting point two hundred thirty (230) feet from its intersection with Lafayette Street, one hundred forty-five (145) feet in an easterly direction to the intersection with Factory Street.

Main Street, southerly side, from its point of intersection with Lafayette Street, easterly for eighty-five (85) feet.

Main Street, southerly side, from its point of intersection with the easterly line of Pearl Street, easterly to the intersection with the northwesterly corner of Central Street.

Main Street, southerly side, from its point of intersection with the westerly line of Pearl Street, westerly to its point of intersection with Union Street.

Main Street, southerly side, from 38 Main Street westerly to the intersection of Pearl Street.

Main Street, south side, from its intersection with Union Street east for a distance of seventy (70) feet.

Main Street, west side, thirty (30) feet southerly direction from Lafayette Street.

Maple Avenue, south side, from its intersection with Drapers Corner east for a distance of two hundred thirty-two (232) feet.

Maple Avenue, south side, from Maple Heights to Moody Park Road.

Meadow Street, both sides.

Middle Street east side, from Summer Street to Glidden Street.

Middle Street, west side, from Glidden Street southerly for a distance of two hundred (200) feet.

Middle Street, west side, thirty (30) feet both northerly and southerly from center of the access driveway for Stevens High School.

Myrtle Street, south side, from its point of intersection with Pleasant Street, westerly a distance of two hundred (200) feet.

North Street, northerly side, from its intersection with Broad Street westerly to its intersection with Elm Street.

North Street, southerly side, from its intersection with Fremont Street westerly to its intersection with Elm Street.

North Street, southerly side, from its intersection with Spring Street to Chellis Street.

North Street, southerly side, from Broad Street two hundred (200) feet west of its intersection with Hanover Street.

North Street, both sides, from its intersection with Main Street easterly to one hundred (100) feet beyond its intersection with Elm Street.

Pearl Street, east side, from its point of intersection with the southerly line of Sullivan Street, southerly a distance of fifty (50) feet.

Pearl Street, westerly side, from Sullivan Street to School Street.

Pearl Street, westerly side, from its point of intersection with the northerly side of Main Street, northerly a distance of one hundred forty-one (141) feet.

Pearl Street, westerly side, from its point of intersection with the southerly line of Central Street, southerly a distance of forty (40) feet.

Pleasant Street, east side, from its point of intersection with the southerly line of Summer Street, southerly a distance of one hundred ten (110) feet.

Pleasant Street, east side, from its point of intersection with the northerly line of Summer Street, northerly a distance of forty-five (45) feet.

Pleasant Street, west side, from its point of intersection with the southerly line of Summer Street, southerly a distance of ninety (90) feet.

Pleasant Street, west side, from its point of intersection with the northerly line of Summer Street, northerly a distance of one hundred ten (110) feet.

Pleasant Street, westerly side, opposite South Street intersection from the northerly property line of 229 Pleasant Street southerly for three hundred fifty (350) feet.

Post Office Road, south side with its intersection with Broad Street easterly for a distance of one hundred ninety (190) feet.

Prospect Street, south side, from Pleasant Street to Tyler Street.

Putnam Street, both sides, from its intersection with Broad Street to its intersection with High Street.

Robert Easter Way, east side.

Royce Street, west side, from West Terrace Street to Front Street.

School Street, north side, between Franklin Street and Walnut Street.

School Street, south side, between Pleasant Street and Pearl Street.

Spaulding Street, westerly side.

Spofford Street, both sides, from Tremont Street to Wall Street and on the east side from Bailey Avenue to Tremont Street.

Spring Street, both sides, from its intersection with Elm Street to its intersection with Main Street.

Spring Street, both sides, from its intersection with Main Street easterly for a distance of three hundred thirty-eight (338) feet to its intersection with Elm Street.

Spring Street, both sides, from its intersection with Elm Street easterly for a distance of one thousand three hundred fifty-two (1,352) feet.

Spruce Avenue, east side.

Stevens Street, south side.

South Street, northerly side, from Pleasant Street easterly for two hundred (200) feet.

South Street, southerly side, from Pleasant Street easterly to Highland Avenue.

Sullivan Street, south side, between Franklin Street and Walnut Street.

Summer Street, north side, from its point of intersection with the easterly line of Pleasant Street, easterly to Middle Street.

Summer Street, north side, from its point of intersection with the westerly line of Pleasant Street, westerly a distance of one hundred ten (110) feet.

Summer Street, south side, from its point of intersection with the easterly line of Pleasant Street, easterly a distance of ninety (90) feet.

Summer Street, south side, from its point of intersection with the westerly line of Pleasant Street, westerly a distance of one hundred (100) feet.

Summit Road, east side, from its intersection with Tyler Street southerly to its intersection with Myrtle Street.

Summit Road, southerly side, from its intersection with Beechmont Street to its intersection with Tyler Street.

Tremont Street, both sides, from Broad Street to High Street.

Tremont Street, both sides, from High Street to Spofford Street.

Trinity Street, south side.

Trinity Street, north side, from the westerly line of Franklin Street to a point twenty-five (25) feet westerly of the westerly line of Franklin Street and from the easterly line of Walnut Street to a point twenty-five (25) feet easterly of the easterly line of Walnut Street.

Tyler Street, both sides, from its intersection with Sullivan Street to its intersection with Myrtle Street.

United Way, on the northerly side from the intersection with Crescent Street, the first one hundred fifty (150) feet and from the intersection with Water Street the first thirty (30) feet. On the southerly side from the intersection with Crescent Street the first one hundred fifty (150) feet and from the intersection with Water Street the first fifty (50) feet.

Wall Street, both sides, from Spofford Street to Broad Street.

Wall Street, southerly side from Spofford Street to a point one hundred (100) feet west of its intersection with Spofford Street.

Wall Street Connector, both sides, from High Street to Broad Street.

Walnut Street, west side, from a point midway of the intersection of Walnut and Trinity Streets southerly for a distance of forty (40) feet and northerly for a distance of one hundred (100) feet.

Walnut Street, west side, from a point midway of the intersection of Walnut and Trinity Streets southerly for a distance of forty (40) feet and northerly for a distance of one hundred (100) feet.

Walnut Street, west side, from its intersection with Sullivan Street to School Street.

Walnut Street, west side, at its intersection with School Street, Myrtle Street.

Washington Street, both sides, from North and Broad Streets easterly to the Newport, New Hampshire, Town Line.

Water Street, at a starting point of 223 feet east of Mill Road east for a distance of 32 feet.

West Pleasant Street, westerly side, from its intersection with Pleasant Street to its intersection with Maple Avenue and Charlestown Road, known as Draper's Corners.

West Terrace Street, both sides, from its intersection with Martin Street to its intersection with Main Street.
(Ord. No. 247, art. V, § 7, 5-8-85; Ord. No. 277, § 1, 6-10-87; Ord. No. 292, §§ 1, 2, 9-14-88; Ord. No. 305, § 1(art. V, § 7), 5-23-89; Ord. No. 332, § 1, 8-22-90; Ord. No. 345, 11-10-92; Ord. No. 354, 1-12-94; Ord. No. 364, 10-12-94; Ord. No. 370, 2-8-95; Ord. No. 371, 2-22-95; Ord. No. 375, 10-11-95; Ord. No. 381, 10-16-96; Ord. No. 384, 2-12-97; Ord. No. 387, 8-13-97; Ord. No. 392, 6-10-98; Ord. No. 393, 10-14-98; Ord. No. 395, 11-11-98; Ord. No. 399, 8-11-99; Ord. No. 404, 8-9-00; Ord. No. 412, 11-8-00; Ord. No. 436, 9-11-02; Ord. No. 444, § 2, 11-19-02; Ord. No. 470, § 1, 4-12-06; Ord. No. 513, § 1, 5-12-2010; Ord. No. 540, § 1, 1-14-2015; Ord. No. 543, § 1, 1-13-2016; Ord. No. 544, § 1, 8-12-2015; Ord. No. 545, § 1, 10-14-2015)

Sec. 19-94.1. Restricted parking.

(a) *No parking during school hours.* The driver of a vehicle shall not park such vehicle during school hours when school is in session on the following described streets or parts of streets unless there is prominently displayed on the vehicle a valid Stevens High School parking permit issued by the superintendent of schools, school administrative unit #6, or designee:

Summer Street, north side, from a point thirty (30) feet east of the Stevens High School cafeteria doors in a westerly direction to the intersection on Summer and Middle Streets.

(b) *Limited parking during school hours.* The driver of a vehicle shall be permitted to park such vehicle during the hours of 2:00 p.m. and 3:30 p.m. on the following streets, or parts of streets, for the purpose of picking up students leaving school. Parking shall be prohibited at all other times.

Summit Road, north side, beginning twenty (20) feet to the west of the intersection with Tyler Street and proceeding westerly one hundred and sixty (160) feet to the southerly property line of the Bluff School, which is located approximately twenty (20) feet to the east of the entrance to the school parking lot. Such parking shall further be restricted to such times that Summit Road is closed to two-way traffic.

(Ord. No. 375, 10-11-95; Ord. No. 444, § 1, 11-19-02; Ord. No. 470, § 1, 4-12-06)

Sec. 19-95. Night parking restricted.

(a) It shall be unlawful for the owner or operator of any vehicle to park a vehicle upon any public highway or public off-street parking area within the city, except as hereinafter provided, between the hours of 12:00 midnight and 7:00 a.m. within the period of November 1 to the following April 15. Time as used herein shall be in accordance with the standard of time in operation in the city. This subsection shall not apply to the Municipal Parking Lot on Franklin Street, the Winner Municipal Parking Lot on Pleasant Street or to the area of the Rotary Island in Opera House Square known as the "bullpen."

(b) No parking, vehicular or pedestrian traffic is allowed between the hours of 10:00 p.m. and 6:00 a.m. in that area of the Rotary Island in Opera House Square known as the "bullpen." The chief of police shall have the authority to adjust the foregoing hours as he or she deems necessary without further action of the city council.

(Ord. No. 247, art. V-A, §§ 1, 2, 5-8-85; Ord. No. 305 § 1(art. V, § 7(a)), 5-23-89; Ord. No. 352, § 1, 9-8-93; Ord. No. 414, 11-8-00; Ord. No. 470, § 1, 4-12-06; Ord. No. 470, § 1, 4-12-06; Ord. No. 503, § 1, 12-10-08; Ord. No. 517, § 2, 9-8-2010; Ord. No. 518, § 1, 10-13-2010)

Sec. 19-96. Municipal parking lots.

(a) The following parking areas are designated municipal parking lots:

Broad Street Municipal Parking Lot: Broad Street, west side, between Tremont Street and Water Street.

Claremont Municipal Parking Lot: Broad Street, west side, adjacent American Legion property.

Claremont Municipal Parking Lot: Franklin Street, east side, shown as Tax Map 120-64.

Claremont Municipal Parking Lot: Pleasant Street, west side, behind the Latchis Block, shown as Lot #2 on a plan prepared by Wayne McCutcheon Assocs.

Lower Cul-de-Sac Place Municipal Parking Lot: Lower Cul-de-Sac Place, south and west side, as shown on Tax Map 120-9.

North Street Municipal Parking Lot: North Street, south side, west of the intersection of North Street and Lower Cul-de-Sac Place, as shown on Tax Map 120-11 and Tax Map 120-12.

Winner Municipal Parking Lot: Pleasant Street, east side, north of Summer Street, as shown on Tax Map 120-106.

(b) Parking is without charge in these areas on a first come, first-served basis, between the hours of 7:00 a.m. until 12:00 midnight, unless otherwise indicated. It shall be unlawful for the owner or operator of any vehicle to park a vehicle in any municipal parking lot between the hours of 12:00 midnight and 7:00 a.m., except as indicated herein. Parking in the Winner Municipal Parking Lot is available on a twenty-four-hour basis, unless otherwise posted by the city. Snow removal restrictions shall be applicable to on-street parking and shall also apply to municipal lots between the hours of 12:00 midnight and 7:00 a.m. The snow removal restrictions as stated herein shall not be applicable to parking in the Municipal Parking Lot on Franklin

Street, the Winner Municipal Parking Lot on Pleasant Street or to the area of the Rotary Island in Opera House Square known as the "bullpen."

(Ord. No. 247, art. V-C, § 1, 5-8-85; Ord. No. 305, § 1(art. V, § 7(c)), 5-23-89; Ord. No. 343, 3-11-92; Ord. No. 414, 11-8-00; Ord. No. 494, § 1, 4-9-08; Ord. No. 503, § 2, 12-10-08; Ord. No. 517, § 3, 9-8-2010; Ord. No. 518, § 2, 10-13-2010; Ord. No. 524, §§ 1, 2, 12-14-2011; Ord. No. 548, § 2, 8-10-2016)

Sec. 19-97. Business parking lots—Use restricted.

(a) It shall be unlawful for the owner or operator of any vehicle to park his vehicle in any business parking lot within the city, except for the following purposes:

- (1) Parking immediately prior to transacting business at a place of business, attending church services, attending lodge or club activity, attending a promotional event, fair or parade, shopping, or patronizing a facility open to the public, adjacent to or in the immediate vicinity of a business parking lot.
- (2) Leaving after parking.
- (3) Leaving a passenger.
- (4) Picking up a passenger.
- (5) Parking while employed at a business in the immediate vicinity.
- (6) With the permission of the owner of a business parking lot or private business premises.

(b) It shall be unlawful for the owner or operator of any vehicle to drive across, through or into and out of any business parking lot within the city, except for the purposes set forth herein.

(Ord. No. 374, 5-24-95)

Editor's note—Ordinance No. 374, adopted May 24, 1995, added §§ 19-97—19-100 to read as set forth herein, and renumbered existing §§ 19-97—19-103 as §§ 19-101—19-107.

Sec. 19-98. Congregating prohibited.

(a) It shall be unlawful for any person to linger, remain, sit or stand in any business parking lot or private business premises, or to sit in or on a motor vehicle in any business parking lot or private business premises, or when prohibited by the owner of a business parking lot or private business premises, as expressed by a sign or signs posted on the premises, nor to remain in a business parking lot or private business premises after being ordered to leave such parking lot by the owner or by an agent of the owner, except for the purposes set forth in subsections 19-97(a)(1) through (6).

(b) It shall be unlawful for any person to linger, remain, sit, block or stand in any municipal parking lot or municipal parking garage or to linger, remain, or sit in a motor vehicle in any municipal parking lot or municipal parking garage as may be prohibited by a sign or signs posted on the premises or after being ordered to leave such municipal parking lot or municipal parking garage by a police officer or other person designated by the chief of police, except for the purposes set forth in subsections 19-97(a)(1) through (6).

(Ord. No. 374, 5-24-95; Ord. No. 509, § 1, 8-12-09)

Sec. 19-99. Trespassing after hours.

It shall be unlawful for any person to enter or stay on any business parking lot or private business premises at any time if staying on or entering the lot or private business premises is prohibited by owner, as indicated by a sign posted on the premises.

(Ord. No. 374, 5-24-95)

Sec. 19-100. Sitting on or standing near parked vehicles prohibited.

It shall be unlawful for any person to sit upon, or otherwise attach himself, to the outside, top, hood, fenders, or to any other portion of any vehicle, or to stand and congregate around any vehicle intended for passengers, while such vehicle is stopped, standing, or parked upon any public way.
(Ord. No. 374, 5-24-95)

Sec. 19-101. Display, sale of vehicle or merchandise.

It shall be unlawful to park a vehicle on a highway when such parking is for the principal purpose of display or sale of such vehicle, or for the purpose of display and/or sale of merchandise therein or thereon.
(Ord. No. 247, art. VI, § 16, 5-8-85)

Sec. 19-102. Repairs.

It shall be unlawful to park a vehicle on a highway for the purpose of repairing, assembling, or dismantling such vehicle, except that it shall be lawful to park a vehicle which has become disabled on the highway to perform bona fide emergency/repairs to such vehicle.
(Ord. No. 247, art. VI, § 17, 5-8-85)

Sec. 19-103. Double parking.

It shall be unlawful for any person to park a motor vehicle, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading passengers or merchandise being delivered to a place of business where it is not possible to make deliveries of merchandise at a rear entrance, but the parking of a vehicle on Pleasant Street for the loading or unloading of merchandise being delivered to a place of business having no rear entrance for such deliveries is absolutely prohibited between the hours of 11:45 a.m. to 1:30 p.m.
(Ord. No. 247, art. VI, § 20, 5-8-85)

Sec. 19-104. Responsible for illegal parking.

If any vehicle is found upon a street or highway in violation of any of the provisions of this chapter regulating the stopping, standing, or parking of vehicles, and the identity of the driver cannot be determined, the owner, or person in whose name such vehicle is registered, shall be held prima facie responsible for such violation.

(Ord. No. 247, art. VI, § 4, 5-8-85)

Sec. 19-105. Police to attach notice of violation to vehicle.

When a police officer or other person designated by the chief of police observes a violation of the parking provisions of this chapter, it shall be the duty of the police officer or other person designated by the chief of police who observes such violation to attach to each vehicle parking in violation of the provisions of this chapter, a notice to the owner or operator thereof that such vehicle is parked in violation of this chapter and instructing such owner or operator to report to the local police station in regard to such violation; or to issue any person observed violating the provisions of this chapter a citation.

(Ord. No. 247, art. VI, § 21, 5-8-85; Ord. No. 482, § 1, 4-11-07)

Sec. 19-106. Fines and penalties for violations.

(a) Each owner or operator of a vehicle who violates the provisions of this chapter which governs and regulates stopping, standing and parking of vehicles shall be fined in accordance with the following schedule:

- (1) Seventy-two-dollar fine for handicapped parking.
- (2) Twenty-five-dollar fine for fire lane.
- (3) Fifteen-dollar fine for parking by fire hydrants, blocking driveways, and winter parking ban
- (4) Ten-dollar fine for parking on wrong side of street, parking on double white or double yellow lines, parking on highway obstructing traffic, parking on crosswalks, parking on sidewalk, parking in no parking zone, overtime parking, and double parking.

(b) All fines shall be doubled if not paid within five (5) days. All violators shall be summoned upon complaint, as provided by RSA 47, if not paid within ten (10) days and the fine shall be doubled again.

(c) Except as set forth in subsections (a) and (b) herein, any person who violates any provision of this chapter [article] shall be fined not less than one hundred dollars (\$100.00). Any such person shall be deemed guilty of a separate offense for every day during any portion of which any violation is committed, continued, or permitted.

(d) Any person not wishing to contest the merits of any complaint may, upon notice of violation, make payment to the police officer in charge at the police headquarters. Failure of such owner or operator to make such payment within five (5) days shall render such owner or operator subject to penalties provided for violation of the general provisions of this chapter.

(e) Any person wishing to contest the merits of any complaint may, upon notice of violation, notify the police officer in charge at the police headquarters either in person or in writing within five (5) days. Any person contesting the merits of any complaint shall be summoned upon complaint, as provided by RSA 47.
(Ord. No. 247, art. VII, § 1, 5-8-85; Ord. No. 374, 5-24-95; Ord. No. 482, § 2, 4-11-07)

Sec. 19-107. Authority to tow or impound certain vehicles illegally parked.

Pursuant to RSA 262:31, 262:32 and 262:33, the superintendent of highways and his authorized agents, in the event that any vehicle shall be illegally parked as provided in those sections or constitutes an obstruction to snow removal operations may cause such vehicle to be removed from the highway pursuant to RSA 262:31 through RSA 262:33.
(Ord. No. 247, art. V-B, § 1, 5-8-85)

Sec. 19-108. Municipal parking garages.

(a) The following parking areas are designated municipal parking garages:

Sawtooth Parking Garage: Main Street, south side, as shown on Tax Map 119-348.

(b) Parking is permitted in municipal parking garages on both a first-come, first-serve and reserved basis. Reserved spaces shall be by agreement negotiated by the city manager at an annual charge of no less than the operational and maintenance costs per space. Each such reserved space shall be so designated by a sign approved by the city at the permittee/lessee's sole cost. Municipal parking garages are available on a twenty-four-hour basis, unless otherwise posted by the city. Parking in public spaces is without charge.

(c) No driver of a vehicle shall park such vehicle in a public space in a municipal parking garage that is not reserved for longer than ten (10) hours at any one time.

(d) It shall be unlawful for any person not so entitled to park, stand, block or otherwise occupy a designated, reserved parking space in a municipal parking garage that has been reserved by another.

(Ord. No. 509, § 2, 8-12-09)

Secs. 19-109—19-120. Reserved.

ARTICLE VI. SPECIFIC STREET REGULATIONS*

Sec. 19-121. One-way streets.

The following streets and parts of streets are hereby declared to be one-way streets:

Broad Street, east side, Summer Street to northerly end of Broad Street Park, north traffic flow only.

Broad Street, west side, northerly end of Broad Street Park to Summer Street, south traffic flow only.

Broad Street Connector, from Broad Street, east side of Broad Street, west side adjacent to city hall, west traffic flow only.

*Cross reference—Streets, § 16-26 et seq.

Crescent Street, Broad Street to a point seventy-five (75) feet easterly of the intersection of Crescent Street and Main Street, west traffic flow only.

Franklin Street, from Sullivan Street to Main Street, north flow only.

Front Street, from Vine Street to Elm Street, east traffic flow only.

Glidden Street, from Pleasant Street to Broad Street, east traffic flow only.

Hogback Road, from its intersection with Route 120 to Red Water Brook Road.

Middle Street, from a point approximately four hundred ninety (490) feet southerly of the southerly line of Glidden Street (being the southerly point of the access driveway to Stevens High School) to Summer Street, south traffic flow only.

Oak Street, School Street to Myrtle Street, south traffic flow only.

Pearl Street, Main Street to Central Street, south traffic flow only.

Pleasant Street, from Opera House Square to School Street, south traffic flow only.

Prospect Street, Pleasant Street to Tyler Street, east traffic flow only.

School Street, Pleasant Street to Franklin Street, west traffic flow only.

Spofford Street, from Wall Street to Tremont Street, south traffic flow only.

Stevens Street, Ascutney Street to West Lafayette Street, west traffic flow only.

Sullivan Street, intersection of Mulberry Street and Union Street to the intersection of Tyler Street and Allen Street, west traffic flow only.

Summit Road, Tyler Street to Grove Street, southwesterly traffic flow only between the hours of 2:00 p.m. and 3:30 p.m. when school is in session.

Tremont Street, from Broad Street to Tremont Square, west traffic flow only.

Tremont Street, from Broad Street easterly one hundred (100) feet to Meadow Street (Wall Street Connector), east traffic flow only.

Trinity Street, Franklin Street to Walnut Street, west traffic flow only.

United Way, Main/Crescent Street to Water Street, east traffic flow.

Vine Street, West Terrace Street to Front Street, south traffic flow only between the hours of 7:00 a.m. and 4:00 p.m. when school is in session.

Vine Street, from West Terrace Street to Front Street, southbound traffic only between the hours of 7:00 a.m. and 4:00 p.m. when school is in session.

(Ord. No. 247, art. VI, § 1, 5-8-85; Ord. No. 293, § 1, 10-12-88; Ord. No. 305, § 1(art. VI, § 1), 5-23-89; Ord. No. 392, 6-10-98; Ord. No. 381, 10-16-96; Ord. No. 404, 8-9-00; Ord. No. 489, § 1, 9-12-07; Ord. No. 507, §§ 1, 2, 6-10-09; Ord. No. 540, § 2, 1-14-2015; Ord. No. 558, 9-27-2017; Ord. No. 595, § 1, 8-24-2022)

Sec. 19-122. Stop streets.

(a) Every driver of a vehicle or other conveyance traveling on any street or right-of-way within the city shall stop at any intersection with any other street or right-of-way where there exists a stop sign duly authorized by the city council pursuant to article III of this chapter 19 and RSA 47:17 VIII or by the commissioner of transportation pursuant to RSA 236:1 et seq.

(b) Signs indicating stop streets shall be erected and maintained at every intersection where such sign has been duly authorized. A listing of such stop signs duly authorized by the city shall be maintained by the department of public works and highways and in the office of the city manager.

(Ord. No. 247, art. VI, § 2, 5-8-85; Ord. No. 305, § 1(art. VI, § 2), 5-23-89; Ord. No. 342, 9-11-91; Ord. No. 343, 3-11-92; Ord. No. 354, 1-12-94; Ord. No. 366, 11-10-94; Ord. No. 369, 2-8-95; Ord. No. 373, 5-24-95; Ord. No. 375, 10-11-95; Ord. No. 380, 7-10-96; Ord. No. 389, 11-12-97; Ord. No. 391, 4-8-98; Ord. No. 393, 10-14-98; Ord. No. 395, 11-11-98; Ord. No. 399, 8-11-99; Ord. No. 400, 10-13-99; Ord. No. 413, 12-13-00; Ord. No. 428, 6-13-01; Ord. No. 434, 4-10-02; Ord. No. 448, 6-9-04; Ord. No. 455, 9-22-04; Ord. No. 457, 3-9-05; Ord. No. 464, 9-14-05; Ord. No. 466, 12-14-05)

Sec. 19-123. Yield right-of-way streets.

(a) Every driver of a vehicle or other conveyance traveling on any street or right-of-way within the city shall slow down and enter with caution the intersection with any other street or right-of-way where there exists a yield sign duly authorized by the city council pursuant to Article III of this chapter and RSA 47:17 VIII or by the commissioner of transportation pursuant to RSA 236:1 et seq.

(b) Signs indicating yield right-of-way streets shall be erected and maintained at every intersection where such sign has been duly authorized. A listing of such yield right-of-way signs duly authorized by the city shall be maintained by the department of public works and highways and in the office of the city manager. (Ord. No. 247, art. VI, § 3, 5-8-85; Ord. No. 305, § 1(art. VI, § 3), 5-23-89; Ord. No. 358, 6-8-94; Ord. No. 375, 10-11-95; Ord. No. 380, 7-10-96; Ord. No. 389, 11-12-97; Ord. No. 395, 11-11-98; Ord. No. 399, 8-11-99; Ord. No. 400, 10-13-99; Ord. No. 457, 3-9-05; Ord. No. 492, § 1, 1-9-08)

Sec. 19-124. Rotary traffic.

(a) All vehicles entering Tremont Square from any direction shall proceed in a counter-clockwise direction at all times around the central parking area therein, forming, so called, rotary traffic, and no vehicle shall be driven in an easterly direction through the middle lane of the central parking area.

(b) All vehicles entering Chestnut Street from Broad Street shall be driven to the right of the curbed triangle at the intersection of Broad Street and Chestnut Street. (Ord. No. 247, art. VI, § 4, 5-8-85)

Sec. 19-125. Limitations on turning on certain streets.

It shall be unlawful for the driver of a vehicle to make any of the following turns:

Arthur Street, no left turn shall be made from Arthur Street to enter eastbound traffic on Washington Street.

City hall parking area, no left turn shall be made from the parking area in front of city hall to enter southbound traffic on Broad Street.

Tremont Square, when proceeding southbound from Tremont Square on Broad Street, no left turn shall be made to enter the parking area in front of city hall.

Washington Street, no left turn shall be made from westbound traffic on Washington Street to enter the Sara Smith Riverside Park, 43 Washington Street.

(Ord. No. 247, art. VI, § 5, 5-8-85; Ord. No. 287, § 2, 3-9-88; Ord. No. 305, § 1(art. VI, § 5), 5-23-89; Ord. No. 493, § 1, 1-9-08; Ord. No. 510, § 1, 10-14-09)

Sec. 19-126. Prohibition of right turn on red signal.

Pursuant to RSA 265:10, subparagraph III(f), right turns on red signals are hereby prohibited at the following designated intersection(s) during the times specified:

Charlestown Road-Maple Avenue, at all times;

West Pleasant Street-Maple Avenue, at all times;

Exit from Market Basket Plaza onto Washington Street, at all times.

(Ord. No. 247, art. VI, § 6, 5-8-85; Ord. No. 511, § 1, 11-12-09)

Sec. 19-127. Limitations on turning around on certain streets.

It shall be unlawful for the driver of any vehicle to turn such vehicle so as to proceed in the opposite direction at the intersection of Pine Street and Pleasant Street between the hours of 8:00 a.m. and 12:00 midnight, or to make a turn at any time at street intersections unless such turn can be made in safety and without backing, and without interfering with other traffic.

(Ord. No. 247, art. VI, § 7, 5-8-85)

Sec. 19-128. Weight limit—Ten thousand and one pounds or more.

(a) No commercial vehicle having a gross vehicle weight of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on South Street, between Broad Street and

Chestnut Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such section of South Street.

(b) No commercial vehicle having a gross vehicle weight of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on Summer Street, between Pleasant and Broad Streets, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such section of Summer Street during school sessions, 7:00 a.m. until 3:00 p.m., Monday through Friday.

(c) No commercial vehicle having a gross vehicle weight of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on Winter Street, from its intersection with Washington Street to its intersection with Hanover Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such street.

(d) No commercial vehicle having a gross vehicle weight of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on Pearl Street, from its intersection with Central Street to its intersection with Sullivan Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such street.

(e) No commercial vehicle having a gross weight limit often thousand one (10,001) pounds or more as listed on its registration shall be operated on Pleasant Street, between Opera House Square and School Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such section of Pleasant Street.

(Ord. No. 284, § 1, 1-13-88; Ord. No. 334, § 1, 12-12-90; Ord. No. 343, 3-11-92; Ord. No. 380, 7-10-96; Ord. No. 458, 4-13-05; Ord. No. 528, 10-10-2012; Ord. No. 596, § 1, 8-24-2022)

Sec. 19-129. Same—Limited weight highways.

(a) *Designated.* The highways designated as limited weight highways are on file in the city manager's office. The superintendent of the highway department may cause to be posted signs limiting the weight of vehicles on such highways.

The superintendent of the highway department shall cause the postings to be removed as an indication that the weight limit on those highways is no longer in effect.

(b) *Limitation of use.* Except as specifically provided in (c) below, it shall be unlawful for any person to operate any motor vehicle weighing more than six (6) tons on any posted limited weight highway.

(c) *Exceptions.* The provisions of this section shall not apply to:

- (1) Any motor vehicle operated by or for the city;
- (2) Delivery vehicles making occasional trips to service residences adjoining the limited weight highway;
- (3) Farm vehicles being operated from or to a farm or residence adjoining the limited weight highway;
- (4) Any other vehicle for which the superintendent of the state highway department, or his designee, has issued a special permit in accordance with (d) below.

(d) *Special permits.* The superintendent of the highway department, or his designee, shall issue a special permit for the operation of vehicles weighing more than six (6) tons over limited weight highways only on the following conditions:

- (1) The superintendent, or his designee, determines that the vehicle will not cause unusual damage to the highway; or,
- (2) The owner of the vehicle deposits with the superintendent security, in the form of cash or a bond guaranteed by an insurance or bonding company licensed to do business in the state in an amount the superintendent, or his designee, determines to be sufficient to pay for the repair of all unusual damage the vehicle is likely to cause. When the operation allowed by the special permit is completed, or during the operation if necessary, the superintendent shall cause the highway to be promptly repaired to a condition equal to that which existed prior to the operation and return any of the security then

remaining; provided, if the actual cost of repairs exceeds the security posted, the owner of the vehicle shall pay to the city the additional costs incurred.

(e) *Appeal.* Any person, who is aggrieved by the superintendent, or his designee, issuing or refusing to issue a special permit, may, within ten (10) days of the decision of the superintendent, or his designee, and not thereafter, appeal that decision to the city council. Upon receipt of such appeal, the city council shall schedule a public hearing, at which all interested parties may present any relevant evidence. At the conclusion of the public hearing, the city council shall affirm, modify or set aside the decision of the superintendent or his designee.

(Ord. No. 306, §§ 3—7, 9-13-89)

Sec. 19-130. Operation of vehicles on class VI highways.

It shall be unlawful for the operator of any vehicle to drive over any unmaintained portions of class VI highways within the city from March 1 to May 23 without first obtaining a written class VI highway usage permit from the city public works department.

- (1) For the purposes of this section, the term "vehicle" shall include, but not be limited to, OHRV's, ATV's, motorcycles, trucks and cars.
- (2) The operator shall have in his or her possession such class VI highway usage permit which shall be immediately available for inspection by any person requesting it.
- (3) Violators of the provisions of this section shall be subject to a fine of up to one thousand dollars (\$1,000.00) per violation as allowed under RSA 47:17, and may be held liable for damages to the highway as provided under RSA 236:38 and RSA 236:39.
- (4) The director of the city public works department may post notice of the provisions of this section at his discretion.
- (5) The director of the city public works department, or his authorized representative, shall issue such class VI highway usage permit at no charge to the applicant.

- (6) The class VI highway usage permit shall allow passage only over that class VI road on which the applicant resides, and the permit shall bear reference to such specific class VI highway.
(Ord. No. 350, 5-11-93; Ord. No. 471, § 1, 6-14-06)

Secs. 19-131—19-145. Reserved.

ARTICLE VII. FIRE LANES*

Sec. 19-146. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fire chief shall mean the duly appointed fire chief or his designee.

Fire lane shall mean a passageway, which has been designated under the provisions of this article, which is sufficient in size and construction to permit unobstructed passage of fire and emergency equipment from a public way to all buildings and structures to which this article applies. Normally, fire lanes shall be twenty (20) feet in width but the fire chief may authorize variations from this standard for good cause.

Proof of notice shall mean an affidavit of delivery, signed by the person who delivered the notice or a signed receipt for certified mail.

Written notification shall mean a written notice either delivered by hand or sent by certified mail.
(Ord. No. 268, § 4, 9-10-86)

Cross reference—Definitions and rules of construction generally, § 1-2.

***Cross references**—Fire department, § 2-201 et seq.; fire prevention and protection, Ch. 6; buildings and building regulations, Ch. 5; streets generally, § 16-26 et seq.

State law reference—Authority, RSA 47:17, XV.

Sec. 19-147. Purpose.

The purpose of this article is to authorize designation of fire lanes for public safety and convenience.
(Ord. No. 268, § 2, 9-10-86)

Sec. 19-148. Application.

This article shall apply to all shopping centers, office buildings, commercial buildings, warehouse and storage buildings, manufacturing and industrial buildings, hospitals, nursing homes, convalescent homes, schools and other public buildings having a parking area to accommodate twenty (20) or more motor vehicles, whether now existing or hereafter constructed, improved or modified.
(Ord. No. 268, § 3, 9-10-86)

Sec. 19-149. Designation, notice and signs.

The fire chief shall designate such permanent fire lanes as public safety and convenience shall require and give written notification of such designation to the owner of the land designated as a fire lane. Proof of service shall create a rebuttable presumption that the owner received notice of the designation. Unless the owner takes a successful appeal from the designation, as provided in section 19-152, the designation shall be permanent until discontinued, as provided in section 19-151. The owner of the land on which a permanent fire lane has been designated shall, at his expense, erect and maintain such signs as are necessary to inform the public of the existence and location of the fire lane. Each sign shall have "Fire Lane, No Parking" prominently displayed thereon.
(Ord. No. 268, § 5, 9-10-86)

Sec. 19-150. Emergency fire lanes.

During a fire or other emergency which threatens public safety, the fire chief shall designate such emergency fire lanes as public safety shall require. No notice of such designations shall be required; all necessary signs shall be provided by the fire chief; and such designations shall end when the emergency ends.
(Ord. No. 268, § 6, 9-10-86)

Sec. 19-151. Discontinuance.

When, due to changing conditions, a designated permanent fire lane is no longer authorized by this article or the fire chief determines that public safety no longer requires a fire lane in that location, the fire chief shall discontinue the fire lane and give written notification to the landowner. Unless the owner takes a successful appeal from the discontinuance, as provided in section 19-152, the fire lane shall no longer exist and the owner shall remove all signs for that fire lane.

(Ord. No. 268, § 7, 9-10-86)

Sec. 19-152. Appeal.

Any owner of land on which a permanent fire lane has been designated or discontinued may appeal the fire chief's action to the code review board within thirty (30) days after the receipt of notification of that action, and not thereafter. Any person who believes that public safety and convenience requires, and this article authorizes, additional fire lanes may request in writing that the fire chief designate additional fire lanes. If the fire chief does not, within thirty (30) days of delivery of the written request, designate the requested fire lanes, the person requesting the additional lanes may appeal the fire chief's failure to act to the code review board within thirty (30) days and sixty (60) days after delivery of the written request and not thereafter. In the event an appeal is taken to the code review board, it shall, after a hearing, decide whether a fire lane shall be designated or discontinued and that decision shall be final.

(Ord. No. 268, § 8, 9-10-86)

Sec. 19-153. Enforcement and penalties.

(a) The owner of the land over which any permanent fire lane has been designated, under the provisions of this article, shall keep the fire lane free of ice, snow and obstructions so that fire and emergency vehicles may have unobstructed access to the buildings and structures served by the fire lane. If the fire chief observes a violation, or learns of a violation of this paragraph, he shall give written notification of the violation to the owner of the land designated as a fire lane, and set a reasonable date for cor-

rection of the violation. Failure of the owner to correct the violation by the date set shall be an offense and upon conviction, the owner may be fined, not to exceed twenty-five dollars (\$25.00) for each day the violation continues.

(b) No person shall park a motor vehicle in a fire lane or permit a motor vehicle to remain in a fire lane unless passengers are entering or exiting the motor vehicle or it is being loaded or unloaded and a licensed driver, capable of operating the vehicle is present. Any violation of this paragraph shall be an offense and the operator of the motor vehicle, upon conviction, may be fined, not to exceed twenty-five dollars (\$25.00).

(c) If any motor vehicle is parked in or remains in a fire lane, any officer having authority to enforce this article may cause the motor vehicle to be towed from the fire lane and the owner or operator of the motor vehicle shall be liable for the costs of the towing, not to exceed twenty-five dollars (\$25.00).

(d) All regular, temporary and deputized police officers of the city and the state, including parking monitors, are authorized to enforce this article, including the arrest and summons of any person who violates this article.
(Ord. No. 268, § 9, 9-10-86)

Secs. 19-154–19-170. Reserved.

ARTICLE VIII. PEDESTRIANS*

Sec. 19-171. Right-of-way, use of crosswalks.

(a) The driver of any vehicle shall yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk or within any unmarked crosswalk at the end of a block, except at intersections where the movement of traffic is being regulated by police officers or traffic-control signals.

*State law reference—Pedestrians, RSA 265:34.

(b) Whenever any vehicle has stopped at a marked crosswalk or at any intersection to permit a pedestrian to cross the roadway, it shall be unlawful for the driver of any other vehicle approaching from the rear to overtake and pass such stopped vehicle.

(c) Every pedestrian crossing a roadway at any point other than within a marked or unmarked crosswalk shall yield the right-of-way to vehicles upon the roadway, provided that this provision shall not relieve the driver of a vehicle from the duty to exercise due care for the safety of pedestrians.

(d) No pedestrian shall cross from one (1) side of a highway to the other except at an intersection or at a crosswalk where the same are indicated.

(Ord. No. 247, art. IV, § 1, 5-8-85)

Sec. 19-172. Rights and duties at controlled intersections.

At intersections where traffic is controlled by traffic-control signals or by police officers, pedestrians shall cross at designated crosswalks on red and amber, green and amber, or on amber alone, or when signaled by the officer in charge, and in all other cases pedestrians shall yield the right-of-way to vehicles lawfully proceeding directly ahead on a green or "Go" signal.

(Ord. No. 247, art. IV, § 2, 5-8-85)

Sec. 19-173. Soliciting rides.

It shall be unlawful for any person to stand in a roadway for the purpose of soliciting a ride from the operator of any motor vehicle.

(Ord. No. 247, art. IV, § 4, 5-8-85)

Secs. 19-174–19-190. Reserved.

ARTICLE IX. BICYCLES***Sec. 19-191. Definition.**

Bicycle. As used in this article, bicycle shall mean every pedaled vehicle propelled solely by human power, upon which any person may ride, except a child's tricycle and similar devices.
(Ord. No. 485, § 1, 5-9-07)

Sec. 19-192. Riding on roadways, public ways and bicycle paths.

(a) Every person riding a bicycle upon a roadway or public way shall have all of the rights, and shall be subject to all of the duties, applicable to the driver of a motor vehicle, except as to special regulations and except as to those provisions which by their nature can have no application.

(b) Every person operating a bicycle upon a roadway or public way shall ride as near to the right side of the roadway or public way as practicable, exercising due care when passing a standing vehicle or one (1) proceeding in the same direction.

(c) Persons riding bicycles upon a roadway or public way shall not ride more than two (2) abreast, except on the paths or parts of roadways set aside for the exclusive use of bicycles.

(d) Wherever a usable path for bicycles has been provided adjacent to a roadway or public way, bicycle riders shall use such path and shall not use the roadway or public way.
(Ord. No. 485, § 1, 5-9-07)

Sec. 19-193. Riding on sidewalks.

(a) No person shall ride a bicycle upon the following sidewalks:

- (1) Pleasant Street from Opera House Square to the intersection with West Pleasant Street;

***Editor's note**—Ord. No. 485, § 1, adopted May 9, 2007, amended article IX, §§ 19-191—19-202, in its entirety to read as herein set out. See also the Code Comparative Table.

State law reference—Bicycles, RSA 265:143 et seq.

- (2) Main Street from its intersection with Franklin and Crescent Streets to Opera House Square;
- (3) Opera House Square;
- (4) Tremont Street from Broad Street to Opera House Square.

(b) Any person riding a bicycle upon a sidewalk where such riding is not prohibited herein, shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian.

(Ord. No. 485, § 1, 5-9-07)

Sec. 19-194. Obedience to traffic-control devices.

(a) Any person operating a bicycle shall obey the instructions of official traffic-control devices applicable to motor vehicles, unless otherwise directed by a police officer.

(b) Whenever authorized signs are erected, such as no right or left turn or no U-turn, persons operating bicycles shall obey the sign instructions, except in such circumstances when a person dismounts from the bicycle to make any such movement, in which event such person shall then obey the regulations applicable to pedestrians.

(Ord. No. 485, § 1, 5-9-07)

Sec. 19-195. Parking.

No person shall park a bicycle upon a street other than parallel to the curb, or upon the sidewalk in a rack to support the bicycle, or against a building, or at the curb in such manner as to afford the least obstruction to pedestrian traffic.

(Ord. No. 485, § 1, 5-9-07)

Sec. 19-196. Carriers.

(a) All front-mounted carriers shall have a design capacity of and be used for the transportation of infants weighing not more than thirty (30) pounds.

(b) All rear-mounted carriers shall have a design capacity of and be used for the transportation of toddlers weighing not more than forty (40) pounds.

(c) All carriers shall be installed in accordance with manufacturer's instructions.

(d) All carriers shall be equipped with the following safety features:

(1) Webbed seat belts;

(2) Leg wells or shields to prevent injury from the front or rear wheel.

(Ord. No. 485, § 1, 5-9-07)

Sec. 19-197. Duty of parents.

No parent or guardian of a minor shall authorize or knowingly permit said minor to violate any provision of this article.
(Ord. No. 485, § 1, 5-9-07)

Sec. 19-198. Prohibited acts.

(a) It shall be unlawful for any person to remove, deface, change or cause to be removed, obliterated, defaced or changed any factory serial or other identification number or mark on any bicycle.

(b) It shall be unlawful for any person to operate a bicycle on any way within the limits of the city during the period from one-half ($\frac{1}{2}$) hour after sunset to one-half ($\frac{1}{2}$) hour before sunrise unless the operator shall display on his bicycle a lighted lamp on the front of the bicycle and a tail light or reflector on the rear.

(c) It shall be unlawful for more than one (1) person to ride on a bicycle unless it is a tandem bicycle equipped with two (2) sets of handlebars, two (2) sprockets and two (2) seats, or unless the additional rider occupies a seat intended to carry a passenger.

(d) No person operating a bicycle shall carry any package, bundle or article which prevents him from keeping both hands upon the handlebars.

(e) No person riding upon any bicycle shall attach the same or himself to any motor vehicle upon a roadway or public way.

(f) No person less than sixteen (16) years of age may operate or ride upon a bicycle on a public way unless wearing protective headgear of a type approved by the commissioner of health and human services.
(Ord. No. 485, § 1, 5-9-07)

Secs. 19-199—19-201. Reserved.

Sec. 19-202. Penalty for violation.

Any person who violates any of the provisions of this article may be given a citation by any police officer or parking enforcement officer who discovers such violation and upon conviction thereof shall be subject to a fine of not more than seventy-five dollars (\$75.00).
(Ord. No. 485, § 1, 5-9-07)

Secs. 19-203—19-220. Reserved.

ARTICLE X. OHRV USE ON CITY-OWNED PROPERTY

Sec. 19-221. Off-highway recreational vehicles permitted.

Operation of off-highway recreational vehicles (hereinafter "OHRV" or "OHRVs"), as defined by RSA 215-A:1, shall be permitted on the following portions of these Class V roads: a) 41 Cat Hole Road to 196 Cat Hole Road; b) 7 Veterans Park Road to 168 Veterans Park Road; c) the intersection of Petrin Heights Road with Washington Street to 10 Petrin Heights Road; as well as all Class VI roads, bridges and certain designated/marked trails. OHRVs may be permitted to operate within city parks as designated subject to such rules and regulations as are established for all users of city parks, on file in the parks and recreation department.
(Ord. No. 456, § 1, 1-9-05; Ord. No. 592, § 1, 5-25-2022)

Sec. 19-222. Permissive use.

Each OHRV organization or club seeking to perform any maintenance, improvement and/or repair of the city's Class VI

roads or trails shall obtain a permit, by and through the process as set forth in Article II, Division 2 (Sec. 16-41 through Sec. 16-58), from the department of public works prior to undertaking any such activity.

(Ord. No. 456, § 2, 1-9-05; Ord. No. 592, § 1, 5-25-2022)

Sec. 19-223. Noise limitation.

All OHRVs operated on city-owned property are subject to the city's noise regulations as set forth in section 22-551 through section 22-556, inclusive, and any amendments and additions thereto.

(Ord. No. 456, § 3, 1-9-05)

Sec. 19-224. Rules of operation.

(a) OHRVs on city-owned property shall not be operated at a speed greater than is reasonable and prudent under existing conditions and with care so that the operator will be able to avoid colliding with any person, vehicle or object. Operators of OHRVs on said property shall keep to the extreme right and shall yield to both oncoming and non-motorized users.

(b) Notwithstanding the above, no OHRV shall be operated in excess of ten (10) miles per hour on that portion of the Sugar River Recreational Trail from the gate on Washington Street to the west side of the bridge over the Sugar River or on any bridge open to OHRV use within the city limits.

(c) No OHRV shall be operated in excess of fifteen (15) miles per hour on that portion of the Sugar River Recreational Trail from the west side of the bridge over the Sugar River to Pleasant Street.

(d) Consistent with the provisions of state law and the requirements of this ordinance, the driver of an OHRV shall drive at an appropriate reduced speed when approaching and crossing an intersection or crossing, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding trail and when a special hazard exists with respect to pedestrians or other traffic by reason of weather or trail conditions.

(Ord. No. 456, § 4, 1-9-05)

Sec. 19-225. User cooperation.

OHRV organizations and clubs shall cooperate with the city to establish safe crossings of Class IV and V roads and to erect

proper signage and other information regarding reasonable and prudent operation of OHRVs where permitted on city-owned property.

(Ord. No. 456, § 5, 1-9-05)

Sec. 19-226. Enforcement, penalties and fines.

The provisions of this article will be enforced pursuant to RSA 215-A and all other applicable state and local laws and regulations.

(Ord. No. 456, § 6, 1-9-05)

Secs. 19-227—19-299. Reserved.

**ARTICLE XI. REGULATION OF SPEED LIMITS ON
CITY STREETS**

Sec. 19-230. Regulation of speed limits on city streets.

The city council, upon recommendation of traffic committee and as permitted by RSA 265:63, may determine that the prima facie speed permitted by state law on city streets is greater or less than is reasonable and safe under the conditions found to exist upon a way or part of a way and thereupon declare a reasonable and safe prima facie limit.

Unless altered by the city council pursuant to this article XI, the prima facie speed limit on all city ways shall be those set forth in RSA 265:60, as may be amended from time to time.

(Ord. No. 512, § 1, 1-13-2010)

Sec. 19-231. Specific speed limitations.

Puckershire Drive—Maximum speed limit shall be twenty-five (25) miles per hour;

South Street (from Chestnut Street to the intersection of Broad Street)—Maximum speed limit shall be twenty-five (25) miles per hour.

Spofford Street—Maximum speed limit shall be twenty-five (25) miles per hour;

Water Street—Maximum speed limit shall be twenty-five (25) miles per hour.
(Ord. No. 512, § 1, 1-13-2010; Ord. No. 561, § 1, 8-22-2018)

Sec. 19-232. Regulation of limitations.

(a) Any altered speed limit as authorized herein shall be effective at all times, unless otherwise indicated.

(b) Any altered speed limit shall be indicated by appropriate signs giving notice thereof.
(Ord. No. 512, § 1, 1-13-2010)

Sec. 19-233. School zones.

The following streets shall be designated school zones, and the maximum speed limit shall be ten (10) miles per hour below the usual posted limit from forty-five (45) minutes prior to each school opening until each school opening, and from each school closing until forty-five (45) minutes after each school closing:

Maple Avenue School:

Sims Street;

Canterbury Street;

Barton Way;

Maple Avenue, between Ballew Street and Bavier Street.

Bluff School:

Summit Road;

Grove Street, between Summit Road and Laurel Street.

Disnard Elementary School:

Hanover Street, between Dunning Street and Shannon Street;

Garden Street;

Shannon Street.

Claremont Middle School:

South Street, between Baker Street and Chase Street.

Stevens High School:

Summer Street, between Pleasant Street and Broad Street;

Middle Street;

Broad Street, between Glidden Street and Chestnut Street.

Private Schools:

Central Street, between Main Street and Pearl Street;

Hardy Avenue;

McKenzie Drive, between Maple Avenue and Cardinal Lane.

(Ord. No. 559, § 1, 2-14-2018; Ord. No. 563, § 1, 11-13-2018; Ord. No. 634, § 1, 9-11-2024)

Sec. 19-234. Enforcement.

(a) It shall be unlawful for any operator of a motor vehicle to exceed the posted speed limits, whether authorized by state law or city ordinance, on any city way or part of a way.

(b) The provisions of RSA 265:60 shall apply equally to any city way or part of a way where the city has designated the speed limit under this article XI.

(Ord. No. 512, § 1, 1-13-2010; Ord. No. 559, § 2, 2-14-2018)